

25CV04132 Michelle Berger et al vs Reed Floors Inc et al

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Case Number

25CV04132

Case Type

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CMC; Demurrer

Tentative Ruling

Michelle Berger, et al. v. Reed Floors, Inc., et al.

Case No. 25CV04132

Hearing Date: September 21, 2026

HEARING: Defendants Reed Floors, Inc. and Reed Interiors Construction, Inc.'s Demurrer to the First and Second Causes of Action of Plaintiffs' First Amended Complaint

ATTORNEYS: For Plaintiffs Michelle Berger and Paul Hindelang: Christopher E. Haskell, Cory T. Baker, Price Postel & Parma LLP

For Defendants Reed Floors Inc. and Reed Interiors Construction Inc.: R. Chris Kroes, Linda Elias-Wheelock, McCarthy & Kroes

[For Other Appearances See List]

TENTATIVE RULING:

The demurrer of defendants Reed Floors, Inc. and Reed Interiors Construction Inc., to the first and second causes of action of plaintiffs' first amended complaint is sustained, with leave to amend, as to the second cause of action, in order for plaintiffs to clarify whether the alleged contract was implied-in-fact or oral. The demurrer is in all other respects overruled. Plaintiffs shall file and serve their second amended complaint no later than September 28, 2026.

Background:

This action commenced on July 2, 2025, by the filing of the original complaint by plaintiffs Michelle Berger ("Berger") and Paul Hindelang ("Hindelang") (collectively "plaintiffs") against several defendants including Reed Floors, Inc. ("Reed Floors") and Reed Interiors Construction Inc. ("Reed Interiors") (collectively "Flooring Defendants") for: (1) negligence; (2) breach of implied warranty; and (3) recovery on contractor's license bond.

As relevant to the present motion, and as alleged in the original complaint:

In 2017, plaintiffs engaged the Flooring Defendants to install interior flooring as part of a demolition and new construction project 341 Ridgecrest Drive, Summerland. (Compl., ¶¶ 1, 20.)

Although plaintiffs and the Flooring Defendants did not execute a written contract, plaintiffs and the Flooring Defendants entered into an agreement for the performance of construction services (the "Flooring Agreement"). (Compl., ¶ 20.)

Per the Flooring Agreement, the Flooring Defendants agreed to furnish all labor, materials, equipment, and services necessary to complete various flooring installations at the property, including installation of custom interior flooring. (Compl., ¶ 21.)

In June 2018, the flooring materials and components were delivered but did not match the product samples previously provided and approved by plaintiffs. (Compl., ¶ 25.) Since the discrepancy in color and finish was immediately apparent, plaintiffs declined to accept the nonconforming materials. (Ibid.) The Flooring Defendants acknowledged the issue and attempted to correct the issue by sourcing and delivering a new product, which was delivered in October 2018. (Ibid.) The replacement materials also failed to match the originally approved samples, but the Flooring Defendants continued to assure plaintiffs that a solution would be found and that additional flooring product and materials would be delivered to achieve an acceptable result. (Ibid.)

Substantial completion of the project occurred in June 2020, but plaintiffs observed further inconsistencies and contacted the Flooring Defendants to discuss repairs and corrections to the flooring. (Compl., ¶ 26.) Communications between the parties continued for an extended period, with the Flooring Defendants offering repeated assurances that the flooring issues would be resolved. (Ibid.) During the period of communication, the Flooring Defendants came to examine the flooring issues in January 2021, but no specific remediation plan or timeline was provided by the Flooring Defendants until May 2021. (Ibid.) Given the ongoing communications, plaintiffs relied on the Flooring Defendants' assurances that all appropriate repairs would

be made and, in good faith, deferred further action in anticipation of a full resolution of the issues. (Ibid.)

In July 2021, representatives of the Flooring Defendants visited the property to evaluate the possibility of refinishing the floor but, despite their attempts to refinish and touch up defective areas, the floors remained visibly scratched and mismatched in color and sheen. (Compl., ¶ 27.)

In October 2021, the Flooring Defendants admitted that floorboards damaged during the application of the topcoat could not be remedied through sanding and would need to be replaced, but that the required replacement materials were unavailable. (Compl., ¶ 28.) However, the Flooring Defendants offered repeated assurances that the flooring issues would be resolved and described their ongoing repair efforts as “trial and error,” acknowledging that the problem was not simple to fix. (Ibid.)

As of August 2022, despite repeated follow-up and renewed assurances by the Flooring Defendants, the promised repairs remained incomplete. (Compl., ¶ 29.) The Flooring Defendants then provided a game plan, but progress continued to stall. (Ibid.) In January 2023, plaintiffs reached out to the Flooring Defendants to continue their prior discussions about the unresolved defects and the proposed resolution and, in response, in March 2023 the Flooring Defendants sent new flooring samples. (Ibid.) In October 2023, the Flooring Defendants again visited the property. (Ibid.) By that time, the replacement floorboards had visibly darkened compared to the original flooring, particularly in high-traffic areas and previously scratched areas under the couch. (Ibid.) Despite numerous efforts to blend and match the flooring, a consistent and acceptable finish had not been achieved. (Ibid.)

On November 7, 2025, plaintiffs moved for leave to file their first amended complaint (“FAC”), and on March 9, 2026, the motion was granted. The FAC was filed the same day. The FAC contains causes of action for: (1) negligence-against the Flooring Defendants; (2) breach of implied-in-fact contract-against the Flooring Defendants; (3) Negligence-against J&K Pool Construction Inc. (“J&K”); (4) breach of implied-in-fact contract-against J&K; (5) Negligence-against Yarnell Construction Inc. (“Yarnell”); (6) breach of implied warranty-against Yarnell; (7) breach of implied-in-fact contract-against Yarnell; and (8)-(11) for recovery on contractor’s license bond-against several defendants.

The basic allegations of the FAC are the same as in the original complaint, with a few additions. As relevant here, and as alleged in the operative FAC:

“In or around August and September 2023, the Flooring Defendants communicated proposed schedules for replacement boards and work to begin in late September. At this time, Flooring Defendants came up with proposed resolutions, and noted damaged flooring during the handling of the couch in the living room.” (FAC, ¶ 30.)

“In or around October 2023, Flooring Defendants revisited the Property, made additional repair attempts. Flooring Defendants conducted another site visit and performed work around October 27 and 30, 2023 and then proposed another resolution to replace the flooring with remaining issues in or around November 2023, including partial application of finish coats. By that time, the replacement floorboards had visibly darkened compared to the original flooring, particularly in high-traffic areas and previously scratched regions under the couch. Despite numerous efforts to blend and match the flooring and repeated promises, including communications in November 2023 and January 2024, Flooring Defendants failed to provide a consistent and acceptable finish, and the flooring issues remained unresolved.” (FAC, ¶ 31.)

“On July 5, 2024, Flooring Defendants emailed Plaintiffs acknowledging the ongoing issues, explaining that a transition to a new insurance provider had caused delays, and representing that a claim had been filed with the new provider to address the flooring issues. Flooring Defendants assured Plaintiffs that they remained committed to resolving the matter. On September 12, 2024, a representative of Flooring Defendants, Jennifer Shaw, attended a site visit at Property with the insurance adjuster to assess the issues. On September 25, 2024, the insurance adjuster acknowledged in writing that Flooring Defendants had already made numerous efforts to match and blend replacement boards and promised to continue working until the flooring was properly corrected.” (FAC, ¶ 32.)

“From around October 31, 2024, through November 26, 2024, Plaintiffs repeatedly communicated with Flooring Defendants regarding site visits, replacement samples, and scheduling of repair work. Flooring Defendants continued to promise resolution, including delivery of new samples and repair visits.” (FAC, ¶ 33.)

“On or around January 15, 2025, representatives of Flooring Defendants, Theo Doussineau and Jennifer Shaw, visited the Property and again promised to fix the flooring. Flooring Defendants coordinated with Plaintiffs regarding sample delivery and repair scheduling, representing that they would perform the necessary work.” (FAC, ¶ 34.)

“Plaintiffs continued to follow up with Flooring Defendants through March 2025 regarding the remaining defects. Plaintiffs allege that, despite repeated site visits, communications, and repair attempts, the Flooring Defendants failed to complete an adequate repair, and the flooring continues to exhibit visible mismatches, scratches, discoloration, and inconsistent finishes.” (FAC, ¶ 35.)

“Throughout this time, Plaintiffs reasonably relied on Flooring Defendants’ repeated assurances that the flooring would ultimately be fixed, promises to return to the Property, and ongoing repair efforts, deterring further action in anticipation of full resolution of the flooring defects. However, as of the filing of this Complaint, no adequate fix has been completed, and the flooring continues to exhibit visible mismatches, damage, and discoloration.” (FAC, ¶ 36.)

On June 11, 2026, the Flooring Defendants filed the present demurrer to the first and second causes of action, which are the only causes of action alleged against them. The demurrer to the first cause of action for negligence is brought on the grounds that it is barred by the three-year statute of limitations and that the allegations of the FAC constitute a sham pleading. The demurrer to the second cause of action for breach of implied-in-fact contract is brought on the grounds that it is barred by the two-year statute of limitations, that the allegations of the FAC constitute a sham pleading, and that it fails to state facts sufficient to constitute a cause of action because it is uncertain in that it cannot be ascertained from the FAC whether the alleged contract is oral or implied by conduct.

Plaintiffs oppose the demurrer.

Analysis:

Request for Judicial Notice

The Flooring Defendant request that the court take judicial notice of plaintiffs’ original complaint filed on July 2, 2025, pursuant to Evidence Code section 452, subdivision (d).

“When the ground of demurrer is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, such matter shall be specified in the demurrer, or in the supporting points and authorities for the purpose of invoking such notice, except as the court may otherwise permit.” (Code Civ. Proc., § 430.70.)

“The trial court shall take judicial notice of any matter specified in Section 452 if a party requests it and:

“(a) Gives each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request; and

“(b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter.” (Evid. Code, § 453.)

"[J]udicial notice of a document does not extend to the truthfulness of its contents or the interpretation of statements contained therein, if those matters are reasonably disputable. [Citations.] Our Supreme Court noted this limitation in *StorMedia Inc. v. Superior Court* (1999) 20 Cal.4th 449, 84 Cal.Rptr.2d 843, 976 P.2d 214 (*StorMedia*), explaining: " 'In ruling on a demurrer, a court may consider facts of which it has taken judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) This includes the existence of a document. When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. [Citation.] . . . ' " [Citation.]" (*Apple Inc. v. Superior Court* (2017) 18 Cal.App.5th 222, 241.)

The court will take judicial notice of the original complaint.

Standard on Demurrer

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

"(a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading.

"(b) The person who filed the pleading does not have the legal capacity to sue.

"(c) There is another action pending between the same parties on the same cause of action.

"(d) There is a defect or misjoinder of parties.

"(e) The pleading does not state facts sufficient to constitute a cause of action.

"(f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.

"(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.

"(h) No certificate was filed as required by Section 411.35." (Code Civ. Proc., § 430.10.)

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30, subd. (a).)

"[A] court must treat a demurrer as admitting all material facts properly pleaded, it does not, however, assume the truth of contentions, deductions or conclusions of law." (*Travelers Indem. Co. of Connecticut v. Navigators Specialty Ins. Co.* (2021) 70 Cal.App.5th 341, 358, citing *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.)

"To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

A demurrer searches for defects in the allegations of the pleading. “A demurrer is simply not the appropriate procedure for determining the truth of disputed facts.” (Ramsden v. Western Union (1977) 71 Cal.App.3d 873, 879.)

Statute of Limitations and Sham Pleading Doctrine

The Flooring Defendants argue that the first cause of action is barred by the applicable statute of limitations. They argue that the cause of action accrued in June 2020, and that the three-year limitations period expired, at the latest, in June 2023. (Demurrer, p. 11, l. 24 - p. 12, l. 1.) The argument is unsupported by the law and is wholly without merit.

“An action for trespass upon or injury to real property,” must be commenced within three years. (Code Civ. Proc., § 338, subd. (b).)

The Flooring Defendants argue that the second cause of action is also barred by the applicable statute of limitations. They argue again that the cause of action accrued in June 2020. They argue that the two-year limitations period expired “well before Plaintiffs filed the [original complaint] in 2025.” (Demurrer, p. 12, l. 23 - p. 13, l. 16.) According to their argument, the Flooring Defendants claim that under one of three scenarios, the period extended in either October 2020, June 2022, or October 2023. Again, this argument is unsupported by the law and is wholly without merit.

An action based upon a non-written contract must be commenced: “Within two years: 1. An action upon a contract, obligation or liability not founded upon an instrument of writing, except as provided in Section 2725 of the Commercial Code or subdivision 2 of Section 337 of this code; or an action founded upon a contract, obligation or liability, evidenced by a certificate, or abstract or guaranty of title of real property, or by a policy of title insurance; provided, that the cause of action upon a contract, obligation or liability evidenced by a certificate, or abstract or guaranty of title of real property or policy of title insurance shall not be deemed to have accrued until the discovery of the loss or damage suffered by the aggrieved party thereunder.” (Code Civ. Proc., § 339, subd. (1).)

“ ‘ ‘ ‘A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.’ ” [Citation.]” (Lee v. Hanley (2015) 61 Cal.4th 1225, 1232.)

Pertinent dates, as set forth in the FAC, and as included above, include:

Substantial completion of the project occurred in June 2020. (FAC, ¶ 25.)

In July and August 2021, representatives of the Flooring Defendants attempted to refinish and touch up defective areas of the floors. (FAC, ¶ 26.)

In October 2021, the Flooring Defendants offered repeated assurances that the flooring issues would be resolved. (FAC, ¶ 27.)

Throughout 2022, the Flooring Defendants conducted site visits and continued to assure plaintiffs that the issues would be resolved, and the Flooring Defendants continued to attempt repairs. (FAC, ¶ 28.)

The Flooring Defendants sent new flooring samples in March 2023, and performed subsequent site visits and repair attempts in April and May 2023. (FAC, ¶ 29.)

In August and September 2023, the Flooring Defendants came up with additional proposed resolutions and noted damaged flooring during the handling of the couch in the living room. (FAC, ¶ 30.)

In October 2023, the Flooring Defendants revisited the property and made additional repair attempts. (FAC, ¶ 31.)

Despite efforts to correct the defects and repeated promises, including communications in November 2023 and January 2024, the issues remained unresolved. (FAC, ¶ 31.)

Further communications were had with the Flooring Defendants all the way until March 2025, wherein the Flooring Defendants promised to fix the flooring issues, or attempted to do so. (FAC, ¶¶ 34, 35.)

The original complaint was filed on July 2, 2025, meaning that the first cause of action must have accrued by July 2, 2022 and by July 1, 2023 for the second cause of action.

Each of these statutes of limitations may be tolled where a plaintiff relies on the works or actions of a contractor that repairs will be made.

“Tolling during a period of repairs rests upon the same basis as does an estoppel to assert the statute of limitations, i.e., reliance by the plaintiff upon the words or actions of the defendant that repairs will be made.” (A & B Painting & Drywall, Inc. v. Superior Court (1994) 25 Cal.App.4th 349, 355.)

“A trial court may decide whether a cause of action for construction defect belongs to the plaintiff where the facts underlying that determination are undisputed. [Citation.] But where—as here—the material facts regarding accrual turn on disputed facts or require credibility determinations, the jury must make these factual findings “ ‘before the trial court decides whether the facts, as determined by the jury’ ” establish ownership of the causes of action as an issue of law. [Citation.]” (Stofer v. Shapell Industries, Inc. (2015) 233 Cal.App.4th 176, 179.)

Even if only the dates contained in the original complaint were in the operative complaint, without the additional allegations of the FAC, the demurrer would not be sustained. It does not appear that the causes of action are necessarily barred by the statute of limitations due to the Flooring Defendants continued promises and attempts at repair. The allegations of the complaint disclose the tolling without the need for plaintiffs to specifically use those words. To the extent that the Flooring Defendants contend that plaintiffs’ representations are untrue, that is a matter for the trier of fact.

The Flooring Defendant’s reliance on *Lantzy v. Centex Homes* (2003) 31 Cal.App.4th 363, is entirely unpersuasive. Not only is the matter distinguishable from the present matter, in explaining why equitable tolling would not apply to the absolute 10-year statute of repose, it actually confirms that tolling could still apply to the present action.

As for the Flooring Defendants’ “sham pleading” argument:

“Under the sham pleading doctrine, “ ‘[i]f a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations.’ ” [Citation.] Where no explanation for an inconsistency is offered, the trial court is entitled to conclude that the pleading party’s cause of action is a sham and sustain a demurrer without leave to amend. [Citation.]” (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 447.)

If an “amended pleading merely clarifies the basis” for claims for relief, the sham pleading doctrine does not apply. (*Zakk v. Diesel*, *supra*, 33 Cal.App.5th at p. 449.)

Here, there is no sham pleading. The FAC does not omit any harmful facts contained in the original complaint, nor does it plead any allegations that are inconsistent with the original complaint. The FAC merely adds additional, consistent, allegations.

Nature of the Contract

The Flooring Defendants argue that the second cause of action is uncertain because the FAC does not specify if the alleged contract is written, oral, or is implied by conduct.

A party may demur to a complaint on the grounds that: "In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." (Code Civ. Proc., § 430.10, subd. (g).)

The caption of the FAC alleges that the second cause of action is breach of implied-in-fact contract.

"An implied contract is one, the existence and terms of which are manifested by conduct." (Civ. Code, § 1621.)

However, the body of the FAC states that the contract was either implied-in-fact or oral. (Heading of Second Cause of Action & ¶ 63.)

It cannot be ascertained which allegation is accurate.

The demurrer will be sustained, with leave to amend, for plaintiffs to clarify whether the contract was implied-in-fact or oral. The demurrer will be otherwise overruled.

Judges

Judge Colleen Sterne

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